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22CV39627

he Circuit Court ofe State of Oregon

For the County of Clackamas

APRIL 25th, 2023

TYLER ALLEN LOFALL

Petitioners

THIRD AMENDED COMPLAINT

Vs.

CLACKAMAS COUNTY
DISTRICT ATTORNEY REBECCA PORTLOCK
CLACKAMAS COUNTY POLICE DEPARTMENT
CLACKAMAS COUNTY JAIL

WEST LINN POLICE DEPARTMENT
DANA GUNNARSON
CATLIN BLYTH

Respondents

Case No.: 22CV39627

MAILING ADDRESS
6880 NW 271st AVE
HILLSBORO, OR 97124

tyleralofall@gmail.com
(386) 262-3322

Eliot D. Thompson eliot.thompson@doj.state.or.us Senior Assistant Attorney General Oregon Dept. of Justice 1162 Court Street NE Salem, OR 97301-4096 Attorney for: Clackamas County DA Rebecca Portlock		**LEWIS, NWEZE & STABLER** **By: William E. Stabler** William E. Stabler, OSB No. 124624 wstabler@cisoregon.org David C. Lewis, OSB No. 953348 dlewis@cisoregon.org Of Attorneys for Defendants West Linn Police Department, Dana Gunnarson, Catlin Blyth

THIRD AMENDED COMPLAINT SEEKING SUMMARY JUDGEMNENT

Monday, April 24, 2023

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Monday, April 24, 2023

Tyler A. Lofall
6880 NW 271st Avenue
Hillsboro, OR 97124
(386) 262 - 3322
tyleralofall@gmail.com

IN THE CIRCUIT COURT IN THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS

Tyler A. Lofall,

PLAINTIFF,

VS.

COUNTY OF CLACKAMAS,
DA REBECCA PORTLOCK,
WEST LINN POLICE DEPARTMENT,
CLACKAMAS COUNTY POLICE DEPARTMENT,
WEST LINN POLICE OFFICER DANA GUNNERSON, WEST LINN POLICE OFFICER CAITLIN BLYTH, CLACKAMAS COUNTY JAIL

DEFENDANTS,

Case No.: 22CV39627

THIRD AMENDED COMPLAINT

GENERAL TORT

REQUEST SUMMARY JUDGEMENT

REQUEST FOR:
ORCP 15D
UTCR 1.100
MONEY DAMAGES RELIEF REQUESTED
$2,418,100.00.

42 USC 1983

I. I. PRELIMINARY STATEMENT

1

Plaintiff Tyler Allen Lofall brings this civil matter pursuant to 42 USC 1983 and constitutional violations of his rights protected by the Fourth, Fifth, and Fourteenth Amendments of the United States Constitution.

2

The matter arises from a series of mishandled incidents that took place on March 4th, 5th, and 6th, 2022, during which officers of the West Linn Police Department ("WLPD") subjected Mr. Lofall to an unlawful detention and caused a detrimental loss of personal property.

Monday, April 24, 2023

II. JURISDICTION AND VENUE

3

This Court has jurisdiction over the Defendants pursuant to 28 U.S. Code § 1343, as Plaintiff brings claims under 42 U.S. Code § 1983 for violations of their constitutional rights.

4

Venue is proper in Clackamas County Circuit Court under ORS 14.070[1]as Defendants reside and have a place of business in Clackamas County, and the events giving rise to this action occurred in Clackamas County.

5

Accordingly, Plaintiff respectfully requests that this Court exercise jurisdiction over this matter and allow this action to proceed in Clackamas County Circuit Court."

III. PARTIES

6

Plaintiff Tyler Allen Lofall is a citizen of the United States of America and a resident of Clackamas County, in the State of Oregon.

7

Defendant County of Clackamas is a municipal corporation existing under and by virtue of the laws of the State of Oregon.

8

Defendant District Attorney Rebecca Portlock was, at all material times, a member of the Clackamas County District Attorney's Office, and is a resident of Clackamas County.

[1] For I live here now, but I am Way overdue to go home to my family and little one who will not be so little soon.

9

Defendant West Linn Police Department is a duly constituted municipal police agency that was created by and functions under the control of the

10

County of Clackamas. Defendant Clackamas County Police Department is a duly constituted municipal police agency that was created by and functions under the control of the County of Clackamas.

11

Officer Dana Gunnarson and Officer Catlin Blyth are employees of the West Linn Police Department, and together they constitute the West Linn Defendants ("WLD")

IV. FACTUAL BACKGROUND "NARRATIVE"

12. The Plaintiff was wrongfully arrested without a warrant by officers Dana Gunnarson and Catlin Blyth under the color of law on March 6th, 2022, at Plaintiffs residence in West Linn, Oregon. The charge of harassment against the Plaintiff was dismissed on July 13th, 2022, and both arresting officers acknowledged that the Plaintiff did not harm his ex-girlfriend.

13. Prior to the arrest, the Plaintiff's ex-girlfriend had a mental health breakdown and caused damage to his property for over three days. On the day of the arrest, the Plaintiff was cleaning up the mess when his ex-girlfriend returned and continued to cause damage. He attempted to stop her but did not harm her. The Plaintiff believes that the arrest was unlawful and requests summary judgment.

14. Defendants Dana Gunnarson and Catlin Blyth conspired to violate Plaintiff's Fourth and Fourteenth Amendment rights through false arrest and malicious prosecution. Plaintiff's ex-girlfriend had vandalized his property and threatened to burn down the house with her children inside. The police were called to the scene due to the ex-girlfriend's obscene actions three days in a row, initially when Plaintiff called when his ex-girlfriend pounded out the windows to the basement and began spraying water all over everything in sight and dumped the first 30-pound bag of flour all over his personal property inside.

15. Lofall remained unreactive to the chaos, but after West Linn Police Department took no action on day one and two, and after getting shot with a hose on the third day Plaintiff decided that two days was enough, and on the third day, grabbed the hose and hammer she was beating everything in sight with, pointed it at the ground for maybe 15 seconds, to protect his property, when she wouldn't calm down he let go, and she walked off with hose and hammer. The Ex-Girlfriend's daughter happened to pull up and was in the car and took a picture, however clearly identifiable with a hammer in her hands, flour on her shirt, and spraying Plaintiff with the hose.

16. Gunnerson and Blyth both conspiring to leave this information out, yet both comments how she "Looks uncomfortable" in the picture. Considering The pictures were of the back of her head, Plaintiff finds that to be bias. It was further indicated that she was scared, yet in the interview they had with the Ex-Girlfriend it specifically stated she was not scared, and Plaintiff had never harmed her, moreover, she showed no fear as one that was fearful, would be reluctant to smash the windows, and spray the Plaintiff and his property while in the same yard alone with him. Plaintiff complained to Officer Blyth about the lack of action and pointed out that

no offensive conduct occurred on his part. Officer Blyth researched the requirements for harassment, and the plaintiff was correct. Instead of letting Plaintiff go, he informed Officer Gunnarson that another incident was needed to support the charge. Defendants then manufactured another incident by twisting the facts provided by Plaintiff's ex-girlfriend to support the charge of harassment. Defendants were biased in their reports, they used word-spin that Plaintiff argued on the spot. This was the Importance of the chest Cameras that they were wearing, that Plaintiff has attempted to obtain a copy of for over a year, and the reason West Linn sealed the tapes with DHS records because there were no children involved (except 1 teenage daughter took a picture, and she has a restraining order on her own mother now), it obviously has an alternative reason its blocked.

17. Defendants used word-spin which is even more damaging than flat out making a lie up to change the context. Word -spin gives an entirely different meaning to the statement, and only adds a simple word like "Only", or, "At"; (1.) making it easy to slip past someone, (2.) looks petty to object to.

18. If Both officers can use that quoted line it sure has power. The word-spin here, adding a sense of urgency and fear that one would have for the ex-girlfriend when viewed from a third person by adding the word "only" and twisting it, so Plaintiff only let her go because her daughter took a picture… insinuating that he had intent for worse otherwise.

19. This Discovery was forwarded to the District Attorney, who further used language even after repetitive correction of "only" and regarding squirting the hose "**AT** [plaintiffs] windows". It wasn't spraying "**at**" any windows, worded more clearly it was "*Took a hammer and bang out all the windows on the house*" took in excess of 30lbs of flour each time she did it, took the

garden hose and sprayed "Where a window **USED to be**" …. "**ON"** his tools computer, the TV, his files, bed and his person. Yet knowingly, intentionally and willfully both officers twisted the language and constantly made the ex-girlfriend look like a saint and Mr. Lofall was spared no tolerance. Mrs. Portlock while blocking various release hearings or no contact waiver motions, continued stretch the truths of the Plaintiffs actions.

20. The Language used when referring to Plaintiff, to make him seem like the Villin in to eliminate Plaintiff's credibility regarding "At his windows" and "only let her go...", both repeatedly were corrected, yet continually used. And it's apparent these games of not needing to expose what the true facts are, if the conviction occurs is a real thing corrupts the courthouse, in Clackamas County. Defendant Rebecca Portlock stuck to her corrupted facts, even after the ex-girlfriend, as crazy as she may arguably be, set a waiver of no contact hearing, and wrote letters to release Plaintiff, because she knew he didn't do anything.

21. Lofall Notified the State AND Attorney General, that he was going to bring forth this lawsuit on the record while in jail. And to prevent this lawsuit, the State through DA Rebecca Portlock, with reckless disregard for the truth and innocence of Mr. Lofall, attempted to avoid this lawsuit by obtaining a guilty verdict in the Criminal Harassment case, justifying all actions used in the prosecution[2].

22. After being leveraged over "the custody of her children being more freely given/[returned]" to further prosecute the Plaintiff (falsely). The ex-girlfriend was then pressured in many ways and in even more of a fragile mental state being leveraged by the Victim Advocate and the DA attorney,

[2] A guilty person has very little rights in alleging constitutional rights violations.

ironically both sharing the same Masonic building as their offices, both put pressure on the ex-girlfriend, to the point she felt the need to leave the country because she didn't want to loosen her morals, even at the risk of her children.

23. Plaintiff had trial moved back already to set for June 8th [3] For his Assignment of Benefits, and followed by Trial on June 10th, for the Harassment. Plaintiff had a Motion to Dismiss ready, given to his "Advisor" who was talking to Defendant Portlock, when he was escorted into the court dressed and ready for trial, on June 10th.

24. Defendant Rebecca Portlock said, "hurry him out of here before the Judge sees him". To the Jailer for the courts,

25. Defendant Rebecca Portlock had no witness[4]. Plaintiff was shuffled out of the court room, and the Jailer told him that Defendant Portlock had asked Judge Steele for a continuance due to Mr. Lofall having Covid, and Mr. Lofall was tested passed and cleared days prior, and the real reason was the only way this lawsuit wasn't going to happen was if she could somehow get a guilty verdict from an innocent inmate! That same day instead of turning in Plaintiffs Motion to Dismiss as Plaintiff had discussed with Plaintiffs advisor, an agreed to a motion to extend time moving trial back till July 14th so they could have another chance at leveraging the ex-girlfriend with her kids. (Confirming text messages to Plaintiffs mother from Mexico).

---

[3] Missed his civil court and is appealing the loss of his $111,943.56 he was unable to protect seven motions he had filed before his arrest due to not showing up to his own hearings (all Struck down).

[4] The only witness in the Planet was Plaintiffs Ex, and she was in Mexico, Rebecca Claimed she had 4 but that's a lie there was 1 on the planet and she wasn't here.

26. As a result, Plaintiff was in jail another six weeks. However, the ex-girlfriend returned from avoiding the states corruption in Mexico, left early when she found out that they moved the case back again, returning to file a Motion of Waiver of no contact in court, and specifically told the DA she was twisting facts and she's full of "half-truths" ending in the alleged "victim" slamming the courtroom door and calling DA Rebecca a liar for the same statements. Validated in Original discovery that was hidden by DHS seal when again, there were no kids involved. (Except a 15-year-old that took a picture and has a no contact on her own mother)

27. Defendants arrested Plaintiff without probable cause or reasonable suspicion, with a reckless indifference toward fairness to Plaintiff. Mr. Lofall remained in jail for some time, and after Plaintiff discovered his public defender wasn't going to win the case for him, she only wanted to make a deal; he went pro se. This is when he first was aloud the privileges of seeing the photos they used as their arresting "evidence", should have been exculpatory evidence, for they proved she had a **Hammer in her hands**, a hose spraying **inside** Plaintiffs windows **not "at them",** with **flour and gloves** on to handle the glass. Yet none of this was inside ANY of his discovery. Lofall was given a five-day plea by the DA's Office, a deal to accept guilt, so they leveraged him and bullied him, he had an Asterisk, "*" on his charge, to be used as a wild card, because they had nothing, he had done nothing wrong.

28. Being Pro se, Plaintiff requested discovery, and his discovery and habeas Corpus requests were ignored in excess of 14 times. 129 days later for no reason they dismissed the same charges they fought keep on him so hard without explanation, no cares, no "Mi sorry" no nothing. It's obvious the state didn't walk into a trial Court on trial day for a second time in one case

completely obvious they knew they were not going to trial weeks or months prior.

29. Four months later, after a series additional issue in jails own events, including catching covid, files being deleted, denied law library 9 days in a row, prior to trial, medical grievances ignored, and keeping plaintiff passed his release when the jail had the contradicting court paperwork declaring Plaintiff was to be released.

V. STATEMENT OF FACTS

30. On March 4th, 5th and 6th, 2022, Plaintiffs ex-girlfriend had Mental health break down and snapped on Plaintiff.

31. His ex had his vehicle keys, and some files he needed and Lofall was trying to pack his stuff to move out of the property, she would not give them to him.

32. March 4th, she took a hammer to the windows where they both resided and pounded out the windows on the first floor,

33. Taking a hose, she sprayed Plaintiff and his property inside the house with the garden hose.

34. Taking the first of (3) 30-pound bags of flour, pouring it inside the windows, directing it all over Plaintiffs personal property and bed causing a huge mess.

35. The ex-girlfriend took five gallons of gasoline that she had specifically purchased for this event and threatened to burn down the house.

36. Plaintiff called WLPD regarding the fire was too much and told them that his ex-girlfriend needed to go to a hospital.

37. On March 5th, Officer Goode came to the house, because his ex-girlfriend was being obnoxious again, Plaintiff talked to Goode about a resolution.

38. And Officer Goode told the ex-girlfriend she could not just start damaging Mr. Lofalls property.

39. Plaintiff put some of his more important things inside his truck and left.

40. Plaintiff notified Officer Goode about the Gasoline, for some reason the ex-girlfriend still had it, he retrieved it from the ex-girlfriend's daughter.

41. The ex-Girlfriend would do random rushes and spraying with the hose throughout these 3 days.

42. On the 3rd day Plaintiff returned to more of a mess, the power shut off and Plaintiff didn't have the keys to his Expedition, nor some of his Files for Plaintiffs he was waiting on and he told his ex-girlfriend he'd leave when he got them.

43. WLPD was told this every day, yet his ex-refused to give them to him.

44. Plaintiff had his evidence for his Assignment of Benefits claim he was awaiting a court date to have his rights enforced for a $111,943.56 assignment he was entitled to on his computers locked in his truck.

45. An incident occurred on March 6th, 2022, at about 2pm when Plaintiff was attempting to clean his property and get it neatly put into his expedition when from inside the basement, he was shot with the hose and more windows were being pounded out (a total of 7 windows and a door window were pounded out) leaving every area in the basement vulnerable to attack.

46. Plaintiff had remained response less the first two days, and because of those days knew what was coming, and he was not about to have his tools art and laptops sprayed and flour poured on them again.

47. He grabbed the hose in his girlfriend's hands, and the hammer not to get hit in protection of his property held them down and away from his the attacking ex-girlfriend for about 15 seconds, and then let her go,

48. She left with both the hose and hammer (of which he could have easily taken but feared hurting her).

49. Her daughter had just pulled up and took a few pictures.

50. Her daughter, not really knowing the extent of her mother's misbehavior, took those pictures to WLPD.

51. Charge of harassment against the Plaintiff was dismissed on July 13th, 2022.

52. Both arresting officers acknowledged that the Plaintiff did not harm his ex-girlfriend.

53. Plaintiff's ex-girlfriend had a mental health breakdown and caused damage to his property over three days prior to the arrest.

54. Plaintiff believes the arrest was unlawful.

55. Defendants Dana Gunnarson and Catlin Blyth are accused of conspiring to violate the Plaintiff's Fourth and Fourteenth Amendment rights through false arrest and malicious prosecution.

56. Plaintiff's ex-girlfriend vandalized his property and threatened to burn down the house with her children inside, prompting the police to be called.

57. The police took no action on the first two days and failed to address the ex-girlfriend's ongoing obscene behaviors.

58. On the third day, Plaintiff held a hose and hammered his ex-girlfriend who was attacking Plaintiff's personal property in defense.

59. Defendants Gunnerson and Blyth left out important details, including the ex-girlfriend's destructive behavior and the Plaintiff's self-defense.

60. Defendants manufactured another incident by twisting facts provided by the ex-girlfriend to support a charge of harassment against Plaintiff.

61. Defendants' biased reports used word spin that Plaintiff argues against.

62. Plaintiff attempted to obtain chest camera footage from the officers for over a year, but they were sealed with DHS record.

63. Defendants changed Plaintiff's words, adding a sense of urgency and fear that did not exist, and insinuated intent that was not present.

64. The District Attorney further used language that twisted facts, even after repetitive correction.

65. Defendants arrested Plaintiff without probable cause or reasonable suspicion and ignored his discovery and habeas Corpus requests.

66. Plaintiff's charge of harassment was dismissed on July 13th, 2022, and both arresting officers acknowledged that Plaintiff did not harm his ex-girlfriend.

67. Defendants intentionally left out important facts, such as the ex-girlfriend's destructive behavior, Plaintiff's self-defense, and the 90 pounds of flour purchased to create a mess on Plaintiff's personal property.

68. PLAINTIFF REQUESTS SUMMARY JUDGMENT.

VI. CLAIMS FOR RELIEF

CONTENTS

COUNT ONE: UNLAWFUL DETENTION 42 U.S.C. § 1983
COUNT TWO: CONSPIRACY TO VIOLATE CONSTITUTIONAL RIGHTS 42 U.S.C. § 1983.
COUNT THREE - FAILURE TO TRAIN/ PREVENT
COUNT FOUR: MALICIOUS PROSECUTION
COUNT FIVE 42 U.S.C. § 1983: DENIAL OF NECESSARY & ADEQUATE MEDICAL C & T
COUNT SIX- FALSE INPRISONMENT
COUNT SEVEN INTENTIONAL INTERFERENCE WITH CA / ER

COUNT ONE: UNLAWFUL DETENTION 42 U.S.C. § 1983

69. For the sake of Brevity, Plaintiff realleges all other paragraphs from 12 to the last count as if they were alleged here.

70. provides a cause of action against any person who, acting under color of state law, deprives another person of any rights, privileges, or immunities secured by the Constitution and laws of the United States. Plaintiff was unlawfully detained by Defendant Dana Gunnarson and Catlin Blyth in violation of his Fourth Amendment rights.

71. Defendant's Actions On or about March 6th, Defendant Dana Gunnarson and Catlin Blyth acting under color of state law, intentionally and wrongfully detained Plaintiff without probable cause or reasonable suspicion that Plaintiff had committed or was about to commit a crime.

72. Violation of Plaintiff's Fourth Amendment Rights to be free from unreasonable searches and seizures, including unlawful detentions. Defendant's actions were objectively unreasonable, given they lacked probable cause or reasonable suspicion to detain Plaintiff, and had two

prior incidences where Plaintiff had not shown any actions a responsible individual could object to.

73. Damages As a direct and proximate result of Defendant's actions, Plaintiff suffered damages including damages emotional anguish, pain and suffering, inconvenience, loss of enjoyment of life, injury to professional standing, injury to character and reputation, injury to credit standing, loss of health, loss of time, stress on loved ones.

DEFENDANTS:

DANA GUNNARSON
CATLIN BLYTH
WEST LINN PD

74.

COUNT TWO: CONSPIRACY TO VIOLATE CONSTITUTIONAL RIGHTS 42 U.S.C. § 1983.

75. For the sake of Brevity, Plaintiff realleges all other paragraphs from 12 to the last count as if they were alleged here.

76. provides a cause of action against any person who, acting under color of state law, deprives another person of any rights, privileges, or immunities secured by the Constitution and laws of the United States. Plaintiff's Fourth and Fourteenth Amendment rights were violated by Defendants' conspiracy to falsely arrest and maliciously prosecute him.

77. Defendants' Agreement and Intent Defendants Gunnarson and Blyth conspired to violate Plaintiff's Fourth and Fourteenth Amendment rights by agreeing and intending to falsely arrest and maliciously prosecute him. Defendants acted in concert to manufacture evidence, twist facts, and

report biased information to the District Attorney, in order to support a charge that they knew lacked probable cause or reasonable suspicion.

78. Deprivation of Constitutional Rights Defendants' actions deprived Plaintiff of his Fourth and Fourteenth Amendment rights to be free from false arrest and malicious prosecution. Defendants' actions were objectively unreasonable, given that they conspired to violate Plaintiff's rights and lacked probable cause or reasonable suspicion to arrest him.

79. Damages As a direct and proximate result of Defendants' actions, Plaintiff suffered damages including emotional anguish, pain and suffering, inconvenience, loss of enjoyment of life, injury to professional standing, injury to character and reputation, injury to credit standing, loss of health, loss of time, stress on loved ones.

DEFENDANTS:

DANA GUNNARSON
CATLIN BLYTH
WEST LINN PD
REBECCA PORTLOCK

COUNT THREE - FAILURE TO TRAIN/ PREVENT

80. For the sake of Brevity, Plaintiff realleges all other paragraphs from 12 to the last count as if they were alleged here.

81. The Defendant, West Linn Police Department, and Clackamas County Jail are liable for violating the Plaintiff's constitutional rights under 42 U.S.C. § 1983. The Defendant, West Linn Police Department, failed to train its officers properly and supervise them, including Officer Dana Gunnarson

and Officer Catlin Blyth. The Defendant's failure to train and supervise was a custom, policy, or practice that led to the violation of the Plaintiff's constitutional rights. The Clackamas County Jail also lacked supervision, which led to a violation of the Plaintiff's rights.

82. Furthermore, the jail's actions towards its inmates' health and well-being were reckless, including ignoring the public concerns of COVID-19 and other serious health needs. The jail's five-week delay in responding to a grievance is unacceptable and violates the 14th Amendment. Additionally, deleting the Plaintiff's court files from the law library and skipping him for nine consecutive days prevented him from having access to the courts, which is an absolute constitutional violation. The Plaintiff's Fourth Amendment rights were violated when the jail passed his release date and did not allow him to be freed when the courts ordered him to be released. This is also a violation of the First Amendment, as it contained the Plaintiff's voice. When the Plaintiff talked to six different officers, they all provided different false reasons, which indicates the jail was deliberately indifferent, poorly trained to give false information, and malicious.

83. The Defendant's failure to train, supervise, and control its employees was the moving force behind the violation of the Plaintiff's constitutional rights. Additionally, for there to be similar issues in both separate departments of the executive branch of the government, this suggests a lack of training at the level of Clackamas County city-wide. This lack of training has caused emotional anguish, pain and suffering, inconvenience, loss of enjoyment of life, injury to professional standing, injury to character and reputation, injury to credit standing, loss of health, loss of time, and stress on loved ones.

84. Therefore, the Plaintiff is seeking compensatory, incidental, consequential, liquidated, and any other damages that the court deems proper as a result of the Defendants' custom, policy, or practice that led to the constitutional violation.

DEFENDANTS:

WEST LINN POLICE DEPARTMENT

CLACKAMAS COUNTY JAIL & CLACKAMAS COUNTY SHERRIFFS DEPT.

FCOUNT FOUR: MALICIOUS PROSECUTION

85. For the sake of Brevity, Plaintiff realleges all other paragraphs from 12 to the last count as if they were alleged here.

86. The District Attorney had a duty to investigate the credibility of the evidence presented to Plaintiff violating the law by Defendants prior to prosecution and Dana Gunnarson, Catlin Blyth, and Rebecca Portlock all failed to do so. The District Attorney, Rebecca Portlock, failed to perform this duty and instead relied on the false and biased information presented to her by Defendants Gunnarson and Blyth, resulting in a violation of Plaintiffs Constitutional rights.

87. Defendant's Actions the Defendant DA Rebecca Portlock knowingly presented false or misleading evidence forwarded to the DA From Officer Gunnarson and Blyth, and then to the court with the intent to harm the Plaintiff. Specifically, the DA failed to investigate evidence presented in the police reports that exonerated the Plaintiff of any wrongdoing, including that he did not harm his ex-girlfriend and that she caused damage to his property. The DA also presented misleading evidence that exaggerated the harm caused by the Plaintiff's ex-girlfriend.

88. Violation of Plaintiff's Fourth and Fourteenth Amendment Rights Defendant's actions violated Plaintiff's Fourth and Fourteenth Amendment rights to due process and equal protection under the law. The Plaintiff was subjected to a baseless criminal prosecution, which resulted in a deprivation of his liberty and harm to his reputation.

89. Damages As a direct and proximate result of Defendant's actions, Plaintiff suffered damages including compensatory, incidental, consequential, liquidated, and any other damages the court deem proper.

90. WHEREFORE, Plaintiff prays for judgment against **Defendant Rebecca Portlock**, **Dana Gunnarson**, **WLPD,** and **Catlin Blyth** for compensatory and punitive damages, costs, and any further relief that the Court deems just and proper."

DEFENDANTS:

DANA GUNNARSON
CATLIN BLYTH
WEST LINN PD
REBECCA PORTLOC

COUNT FIVE 42 U.S.C. § 1983: DENIAL OF NECESSARY AND ADEQUATE MEDICAL CARE AND TREATMENT

91. For the sake of Brevity, Plaintiff realleges all other paragraphs from 12 to the last count as if they were alleged here.

92. Defendants, acting under color of state law, denied Plaintiff necessary and adequate medical care and treatment in violation of Plaintiff's rights under the Eighth Amendment and fourteenth amendments to the United States Constitution.

93. Defendants knew or should have known that Plaintiff required medical care and treatment, but deliberately and/or recklessly disregarded Plaintiff's serious medical needs.

94. Specifically, Defendants refused Plaintiff access to the court, deleted sixty-two of Plaintiff's court documents 10 days before trial, and retaliated when Plaintiff wrote grievances. Defendants also denied Plaintiff access to the Law Library, which impeded his ability to prepare for his case. Defendants' negligence caused Covid outbreaks in the jail, which resulted in Plaintiff contracting Covid and missing his civil trial, causing him to lose $180,000. Defendants were aware of Plaintiff's legal blindness and his -11.00-eye prescription, yet they forced Plaintiff to endure weeks without adequate vision, which caused him to suffer greatly. Defendants also ignored Plaintiff's grievances over inadequate healthcare, including when he was ignored for days in isolation with Covid without medication and when he was ignored by guard Tate, who put Plaintiff's life in danger by refusing to provide him with medical attention. Defendants' conduct was objectively unreasonable and constituted deliberate indifference to Plaintiff's serious medical needs.

95. As a direct and proximate result of Defendants' deliberate and/or reckless disregard for Plaintiff's medical needs, Plaintiff suffered significant harm, including but not limited to the harm described in paragraphs 93 through 99 of the Complaint.

96. Defendants' conduct violated Plaintiff's clearly established constitutional rights, and as a result, Defendants are liable to Plaintiff for damages, including but not limited to compensatory damages, punitive damages, and fees and costs.

Respectfully Submitted by

DATED This 23rd day of April 2023

Tyler A. Lofall Plaintiff Pro Se

COUNT SIX- FALSE INPRISONMENT

97. For the sake of Brevity, Plaintiff realleges all other paragraphs from 12 to the last count as if they were alleged here.

98. The Plaintiff is Tyler Allen Lofall,

99. The Defendant is the Clackamas County Jail, located in Oregon City and was where the Plaintiff being withheld between March 6th and July 8th, 2022. On July 1st, 2022, and the Clackamas County Courts ordered Plaintiff to be released from the Clackamas County Jail by the court.

100. Despite the court order, the Defendant failed to release the Plaintiff from custody for an additional week.

101. The Defendant claimed that they did not have the documentation necessary to release the Plaintiff, but upon further investigation, it was revealed that the Defendant had the Plaintiff's release paperwork the entire time.

102. The Plaintiff spoke with six different agents of the Defendant who all provided conflicting and unhelpful responses, causing further distress and anxiety for the Plaintiff.

103. Defendants intentionally and wrongfully confined and restrained Plaintiff without their consent.

104. The confinement and restraint were unlawful and constituted a violation of Plaintiff's rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution and ORS 163.225.

105. As a direct and proximate result of Defendants' actions, Plaintiff suffered damages, including emotional distress, inconvenience, and harm to their reputation.

106. As a result of the Defendant's actions, the Plaintiff was falsely imprisoned for an additional week beyond the court's order, causing emotional distress, loss of income, and other damages.

DEFENDANTS
Clackamas County Jail
Clackamas County Sheriff's Dept

COUNT SEVEN INTENTIONAL INTERFERENCE WITH CONTRACTUAL / ECONOMIC RELATIONSHIP

107. For the sake of Brevity, Plaintiff realleges all other paragraphs from 12 to the last count as if they were alleged here.

108. Prior to his arrest, Plaintiff had a valid and enforceable contract with [insert name of contractor] to perform a remodel of his home (the "Contract").

109. Defendants, acting with knowledge of the Contract and with the intent to interfere with Plaintiff's contractual relationship, intentionally and wrongfully interfered with the Contract by arresting Plaintiff on false charges and detaining him in jail, causing Plaintiff to miss his trial and exposing him to COVID-19.

110. As a direct and proximate result of Defendants' intentional interference with the Contract, Plaintiff suffered damages, including but not limited to the loss of the benefits of the Contract, additional expenses, lost profits, and emotional distress.

111. Defendants' conduct was willful, malicious, and done with conscious disregard for Plaintiff's rights and interests, and thus justifies an award of punitive damages.

112. As a direct and proximate result of Defendants' wrongful conduct, Plaintiff has been damaged in an amount to be proven at trial, and Plaintiff is entitled to recover from Defendants all damages caused by their wrongful conduct.

113. Plaintiff has no adequate remedy at law and is entitled to an award of injunctive relief enjoining Defendants from further interference with Plaintiff's contractual relationship.

114. Defendants' conduct constitutes an intentional tort and was committed with malice, oppression, and fraud, justifying an award of attorney's fees and costs.

115. WHEREFORE, Plaintiff prays for judgment against Defendants, jointly and severally, for compensatory and punitive damages, attorney's fees and costs, and any further relief that the Court deems just and proper.

DEFENDANTS:

DANA GUNNARSON
CATLIN BLYTH
WEST LINN PD
REBECCA PORTLOCK

VII. STATEMENT OF CLAIMS

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Dana Gunnarson

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Dana Gunnarson

116. Plaintiff, TYLER ALLEN LOFALL brings this action against Dana Gunnarson for the following causes of action.

117. On March 6th, 2022, Plaintiff was **unlawfully detained** by Defendant Dana Gunnarson in violation of 42 U.S.C. § 1983. Despite not having the proper elements consisting of a crime, Defendant Gunnarson recklessly disregarded Plaintiff's rights by arresting him, and then instead of releasing him, manufactured false claims against him with the intent to damage Plaintiff.

118. Under 42 U.S.C. § 1983, an individual can bring a claim for unlawful detention when a government official deprives them of their liberty without due process of law. In this case, Defendant Gunnarson unlawfully seized Plaintiff in his person and failed to provide proper documentation or evidence of a crime, thus violating Plaintiff's due process rights.

119. Defendant Gunnarson, despite having access to exculpatory evidence in the form of photographs, chose to forward false claims against Plaintiff to the Das officer with the intent to harm Plaintiff. This malicious and biased conduct violated Plaintiff's rights and resulted in serious

consequences, including criminal charges, loss of assignment of benefits, loss of property in four locations, and exposure to COVID-19 and hyperthermia.

120. Plaintiff suffered emotional distress, damage to his reputation, PTSD, and a loss of belief in the government. Additionally, he spent a year homeless fighting these matters and was further subjected to four months of jail time.

121. Therefore, Plaintiff prays for judgment against Defendant for actual damages, costs, and attorney's fees, and for such other and further relief as the Court deems just and proper.

122. **CONSPIRACY:** Dana Gunnarson along with Catlin Blyth, and in Oregon someone need not prove the two knew about or communicated the conspiracy only that they were involved in the chain of events there for Rebecca Portlock. The three of them conspired to deprive Plaintiff of his constitutional rights, including his right to be free from unlawful detention and malicious prosecution. Defendants acted in concert to fabricate false charges against Plaintiff, withhold exculpatory evidence, and pursue the prosecution of Plaintiff with malice and reckless disregard for the truth.

123. **Malicious Prosecution**: Plaintiff was subjected to malicious prosecution as a result of the false arrest and subsequent false imprisonment. The charges against Plaintiff were baseless and unsupported by evidence. The prosecution was pursued with malice and with the intent to harm Plaintiff's reputation and emotional well-being.

124. Fourth Amendment rights to be free from unreasonable searches and seizures: Defendant Gunnarson and Blyth Violated this constitutional right of the plaintiff in seizure of his person and had made promises to Lofall

upon his seizure that they would put his property inside his truck and lock the door while he was being arrested, there was property all outside being packed to go inside his truck, including his contract information, computer, evidence, that was for his assignment of benefits worth $**111**,**943**.56, clothes and tubs full of DeWalt power tools, and testing meters and such, and a new 13hp pressure washer, DeWalt battery charger, 3D dodecahedron art pieces (pair), Plaintiffs clothes and they failed to do so, and would have been easily avoided had these two WLD followed their policy that they breached in doing so.

125. WHEREFORE, Plaintiff prays for judgment against Clackamas County Jail for actual damages, costs, and attorney's fees, and for such other and further relief as the Court deems just and proper.

Respectfully submitted by Plaintiff Pro Se

DATED This 23rd day of April 2023

Tyler A. Lofall

Catlin Blyth

126. Plaintiff, TYLER ALLEN LOFALL brings this action against Catlin Blyth for the following causes of action.

127. On March 6th, 2022, Plaintiff was **unlawfully** **detained** by Defendant Dana Gunnarson in violation of 42 U.S.C. § 1983. Despite not having the proper elements consisting of a crime, Defendant Gunnarson recklessly disregarded Plaintiff's rights by arresting him, and then instead of releasing him, manufactured false claims against him with the intent to damage Plaintiff.

128. Under 42 U.S.C. § 1983, an individual can bring a claim for unlawful detention when a government official deprives them of their liberty without due process of law. In this case, Defendant Gunnarson unlawfully seized Plaintiff in his person and failed to provide proper documentation or evidence of a crime, thus violating Plaintiff's due process rights.

129. Catlin Blyth, despite having access to exculpatory evidence in the form of photographs, chose to forward false claims against Plaintiff to the Das officer with the intent to harm Plaintiff. This malicious and biased conduct violated Plaintiff's rights and resulted in serious consequences, including criminal charges, loss of assignment of benefits, loss of property in four locations, and exposure to COVID-19 and hyperthermia.

130. Plaintiff suffered emotional distress, damage to his reputation, PTSD, and a loss of belief in the government. Additionally, he spent a year homeless fighting these matters and was further subjected to four months of jail time and would have been easily avoided had these two WLD followed their policy that they breached in doing so.

131. Therefore, Plaintiff prays for judgment against Defendant for actual damages, costs, and attorney's fees, and for such other and further relief as the Court deems just and proper.

132. Conspiracy: Defendants conspired to deprive Plaintiff of his constitutional rights, including his right to be free from unlawful detention and malicious prosecution. Defendants acted in concert to fabricate false charges against Plaintiff, withhold exculpatory evidence, and pursue the prosecution of Plaintiff with malice and reckless disregard for the truth.

133. Malicious Prosecution: Plaintiff was subjected to malicious prosecution as a result of the false arrest and subsequent false

imprisonment. The charges against Plaintiff were baseless and unsupported by evidence. The prosecution was pursued with malice and with the intent to harm Plaintiff's reputation and emotional well-being.

134. Fourth Amendment rights to be free from unreasonable searches and seizures: Defendant Gunnarson and Blyth Violated this constitutional right of the plaintiff in seizure of his person and had made promises to Lofall upon his seizure that they would put his property inside his truck and lock the door while he was being arrested, there was property all outside being packed to go inside his truck, including his contract information, computer, evidence, that was for his assignment of benefits worth $111,943.56, clothes and tubs full of DeWalt power tools, and testing meters and such, and a new 13hp pressure washer, DeWalt battery charger, 3D dodecahedron art pieces (pair), Plaintiffs clothes and they failed to do so.

135. WHEREFORE, Plaintiff prays for summary judgment against Catlin Blyth and against all that have his corruption in the future, involved that he be reprimanded to not curse any more people with like plaintiff in an arrest, detention, and prosecution, and plaintiff prays for actual damages, compensatory, incidental, consequential, liquidated, and any other damages the court deem proper.

Respectfully submitted by Plaintiff Pro Se

DATED This 23rd day of April 2023

Tyler A. Lofall

West Linn PD

136. Plaintiff, TYLER ALLEN LOFALL brings this action against WEST LINN POLICE DEPARTMENT for the following causes of action:

137. Defendant West Linn Police Department had a policy, custom, and/or practice of failing to adequately train and supervise its officers with respect to the Fourth Amendment and the laws governing false arrest. As a result of this policy, custom, and/or practice, Defendant's officers regularly made false arrests and violated the constitutional rights of individuals in the community, including Plaintiff. Despite receiving numerous complaints, and Dana Gunnarson for example is currently being sued in multiple cases, and warnings about this problem, Defendant failed to take adequate measures to address the issue, thereby demonstrating deliberate indifference to the constitutional rights of the community. Plaintiff was one such individual who was subjected to false arrest by Defendant's officers, resulting in a violation of Plaintiff's Fourth Amendment rights. Defendant is therefore liable under Monell for its officers' unconstitutional actions. (Monell)

138. On March 6th, 2022, Plaintiff was unlawfully detained by Defendant Dana Gunnarson in violation of 42 U.S.C. § 1983. This is a direct result of improper supervision and training and was signed off by two separate supervisors of West Linn Police Department. Despite not having the proper elements consisting of a crime, Defendant Gunnarson recklessly disregarded Plaintiff's rights by arresting him, and then instead of releasing him, manufactured false claims against him with the intent to damage Plaintiff.

139. Under 42 U.S.C. § 1983, an individual can bring a claim for unlawful detention when a government official deprives them of their liberty without due process of law. In this case, Defendant Gunnarson unlawfully seized

Plaintiff in his person and failed to provide proper documentation or evidence of a crime, thus violating Plaintiff's due process rights.

140. Defendant Gunnarson, despite having access to exculpatory evidence in the form of photographs, chose to forward false claims against Plaintiff to the Das officer with the intent to harm Plaintiff. This malicious and biased conduct violated Plaintiff's rights and resulted in serious consequences, including criminal charges, loss of assignment of benefits, loss of property in four locations, and exposure to COVID-19 and hyperthermia.

141. Plaintiff suffered emotional distress, damage to his reputation, PTSD, and a loss of belief in the government. Additionally, he spent a year homeless fighting these matters and was further subjected to four months of jail time.

142. Therefore, Plaintiff prays for judgment against Defendant for actual damages, costs, and attorney's fees, and for such other and further relief as the Court deems just and proper.

143. Conspiracy: through its agents including but not limited to, (1) Dana Gunnarson, and (2) Catlin Blyth, conspired to gather evidence framed a bias fact and relayed those facts to DA Rebecca Portlock regarding Plaintiff. The three of them conspired to deprive Plaintiff of his constitutional rights, including his right to be free from unlawful detention and malicious prosecution. Defendants acted in concert to fabricate false charges against Plaintiff, withhold exculpatory evidence, and pursue the prosecution of Plaintiff with malice and reckless disregard for the truth.

144. Malicious Prosecution: Plaintiff was subjected to malicious prosecution as a result of the false arrest and subsequent false

imprisonment. The charges against Plaintiff were baseless and unsupported by evidence. The prosecution was pursued with malice and with the intent to harm Plaintiff's reputation and emotional well-being, where plaintiff did suffer emotional anguish, pain and suffering, inconvenience, loss of enjoyment of life, injury to professional standing, injury to character and reputation, injury to credit standing, loss of health, loss of time, stress on loved ones.

145. WHEREFORE, Plaintiff prays for judgment against West Linn PD for actual damages, compensatory, incidental, consequential, liquidated, and any other damages the court deem proper.

Respectfully submitted by Plaintiff Pro Se

DATED This 23rd day of April 2023

Tyler A. Lofall

Rebecca Portlock

146. Plaintiff, TYLER ALLEN LOFALL, brings this action against Defendant Rebecca Portlock for the following causes of action.

147. The District Attorney had a duty to investigate the credibility of the evidence presented in the prosecution of Plaintiff violating the law by Defendants prior to prosecution. Dana Gunnarson, Catlin Blyth, and Rebecca Portlock all failed to do so, moreover Defendant Portlock as per *Rules of Professional Conduct* **Rule 3.8: Special Responsibilities of a Prosecutor** *The prosecutor in a criminal case shall:(a) refrain from prosecuting a charge that the prosecutor knows is not supported by probable cause* Violating Plaintiffs right to be treated fairly and prosecuted with due diligence.

148. The District Attorney, Rebecca Portlock, failed to follow this rule, and instead relied on the false and biased information presented to her by Defendants Gunnarson and Blyth, resulting in a violation of Plaintiffs Constitutional rights.

149. Plaintiff was further harmed when Defendant Portlock showed a reckless disregard to Plaintiffs constitutional rights when she deliberately ignored motions and requests 14 times while he remained in jail awaiting answers that she didn't bother ever plan on answering. Leaving Plaintiff without any real options due to Defendants deliberate indifference to Plaintiff being locked up or not. As a result, Plaintiff suffered physical and emotional harm, Loss of Assignment rights, caught covid 19, hyperthermia.

150. Malicious Prosecution: Plaintiff was subjected to malicious prosecution as a result of the false arrest and subsequent false imprisonment. The charges against Plaintiff were baseless and unsupported by evidence. The prosecution was pursued with malice and with the intent to harm Plaintiff's reputation and emotional well-being.

151. WHEREFORE, Plaintiff prays for judgment against Rebecca Portlock for actual damages, costs, and attorney's fees, and for such other and further relief as the Court deems just and proper.

Respectfully submitted by

Tyler Lofal

Clackamas County Jail & Clackamas County Sherriff Dept.

152. Plaintiff, TYLER ALLEN LOFALL brings this action against Clackamas County Jail supervised by Clackamas County Sheriff's Department for the following causes of action.

153. False Imprisonment: On JULY 1ST till JULY 8th, Plaintiff was unlawfully detained by Clackamas County Jail, despite having proper documentation to be released. Plaintiff spoke with six different police officers who had access to the documentation, but they failed to release him. The plaintiff was only released after ten days of additional detention. As a result of the false imprisonment, Plaintiff suffered emotional distress and damage to his reputation.

154. Denial of Adequate Medical Care: During Plaintiff's detention at Clackamas County Jail, he was denied necessary and adequate medical care and treatment for his pre-existing medical conditions. Despite repeated requests for treatment, the Plaintiff was not provided with the necessary medication and treatment. As a result, Plaintiff suffered physical and emotional harm.

155. Defendant Clackamas County Jail had a policy, custom, and/or practice of failing to adequately train and supervise its officers with respect to the Fourth Amendment and Fourteenth Amendment and the laws governing Adequate Medical Care. As a result of this policy, custom, and/or practice, Defendant's officers regularly made violations of inmate's rights, with deliberate indifference, constantly violating the constitutional rights of individuals in the community, including Plaintiff. Despite receiving numerous complaints, agents of the jail ignore grievances and respond with retaliation. Some of these issues are incredibly serious and agents in control of the Clackamas County Jail failed to take adequate measures to address the issue, thereby demonstrating deliberate indifference to the constitutional rights of the community. Plaintiff was one such individual who was subjected to false arrest by Defendant's officers, resulting in a violation of Plaintiff's Fourth Amendment rights. Defendant is therefore liable under Monell for its officers' unconstitutional actions.

156. WHEREFORE, Plaintiff prays for judgment against Clackamas County Jail for actual damages, costs, compensatory, incidental, consequential, liquidated, and any other damages the court deem proper.

DATED This 23rd day of April 2023

Respectfully submitted.

Tyler A. Lofall

VIII. DAMAGES

CONTENTS

LOST VALUE AT FOUR LOCATIONS

ECONOMIC DAMAGES

NON-ECONOMIC DAMAGES

As a direct and proximate result of Defendant's actions, Plaintiff suffered damages including claim Exhibits, contracts, and computers were covered in water, my tools stollen or submerged, generator is gone, two trailers stollen, my truck was pillaged, art ruined, and clothes were mouldy. Additionally, Plaintiff had a significant amount of property at the following four locations:

157. PERSONAL PROPERTY AT THE FOLLOWING LOCATIONS THAT WAS LEFT AND LOST DUE TO BEING WRONGFULLY IMPRISONED

1) Property lost at 423 Nagel rd., Washougal wa - estimated at $75,000.00.

2) Property lost at 2535 Sunset Ave, West Linn or 97068 – estimated at $20,000.00.

3) Property lost at 1906 ridge road ne, Shelton WA - estimated at $12,000.00.

4) Property stored in Clackamas lost due to Clackamas County Police Department allowing someone else to drive away the vehicle that plaintiff was arrested after newly reclaiming a friend's [john Barichello], car from SOMEONE WHO STOLE HIS 2008 CRV. – ESTIMATED AT $2,500.00

Plaintiff suffered substantial damages.
as a result of the defendants' actions. These damages include:

ECONOMIC DAMAGES:

i)

2) Loss of Plaintiffs Assignment of Benefits Valuing $78,557.59
$111,943.56 of which only $33,385.97 has been paid,
leaving a balance of

3) Loss of the Tort claim that comes with the AOB estimated value	$100,000
4) Loss of property in 4 locations that was left to be pillaged, abandoned and stollen, described above	$109,500
5) Medical expenses incurred as a result of the injuries sustained during the arrest, including emergency room visit, with hyperthermia so cold plaintiffs' toenails fell off. (Est)	$10,000
6) Property damage to plaintiff's vehicle resulting from the officers leaving the keys with careless individuals,	$5,000
7) Lost wages and benefits from being unlawfully Detained without the ability to work Plaintiffs job as a result of the false arrest and malicious prosecution, totaling	$50,000.

NON-ECONOMIC DAMAGES:

1) Pain and suffering resulting from the physical injuries sustained during the arrest, including bruising, contusions, and soreness, which has persisted for several months, totaling	$100,000.

2) Emotional distress resulting from the false arrest and malicious prosecution, including anxiety, depression, and humiliation, failure to provide and care for dependents totaling.	500,000
3) Loss of reputation in the community and harm to personal relationships resulting from the false arrest and malicious prosecution, which cannot be quantified.	TBD
4) ANY OTHER DAMAGES THE COURT SEES JUST	TBD

PLAINTIFF RESERVES THE RIGHT TO SEEK ADDITIONAL DAMAGES AS THE EVIDENCE MAY WARRANT.

THIS Page is left intentionally bank.

IX. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Honorable Court grant the following relief:

a. A declaration that Defendants' actions violated Plaintiff's constitutional rights under the Fourth and Fourteenth Amendments.

b. An award of compensatory damages in an amount to be determined at trial, including damages for pain and suffering, emotional distress, medical expenses, and any other damages incurred as a result of Defendants' actions. If Summary Judgement doesn't determine a judgement.

c. Plaintiff requests that this Court grant summary judgment in his/her favor and against Defendant on all claims for relief. **(Reserve the rights to leave at the original amount if summary Judgement cannot conclude this case)**

d. An award of fees, costs, and expenses incurred in pursuing this action, future.

e. Injunctive relief to prevent Defendants from engaging in similar conduct in the and as the court deems proper.

f. Any other relief that the Court deems just and proper.

X. CONCLUSION

Id like to sum this up with an appreciation for taking the time to review these facts, this false arrest has caused a lot of damage in my personal life, because of what it means for me when i was released. The going to jail, the being inside, the court dates, those were all part of it, but the getting out to everything you own is gone and ruined and now your homeless that was the hard part. My vehicles, my property everything.

I had my retirement, involved in a 401k and had an assignment of benefits, where it was interjected after a rebuilt a house after a fire, and the lady died. The heirs interrupted my claim rights, and it was irrevocable with consideration given… and missed my own trial because I had covid i caught while in jail from this false arrest. I had seven motions submitted when I went to jail, those were needed motions to prevail. I got to walk out into my own trail and the only claim that was left was the counter suit. I was released right

before a msj for my contract claim, to close to it that my documents were not included in the decision.

Life's hard, i work hard my whole life, and had my 401k invested in that i lost, and then i had everything taken lost, stollen and pillaged when i was in jail, i caught covid.

I used to be proud to be an American, but its getting harder and harder, and actions like the ones explained herein changed that for me, kinda like santa clause … "Sounds good" trying to litigate these matters have taken those things from me, they did that, and then no one listens to people in jail, they just assume "yeah you did it what ever ". Now that im free and have access to some of these things, it blows my mind from beginning to end how this system works. Reviewing how much information the entire time really matters and how many different ways that matter can get called to twist anything around to anything else… such as with words like "only" or "at" being the difference in me have first degree stalker tendicies or not.

The point that people aren't listened to once they get arrested…, not reviewed, truths were bent, and check and balance after check and balance was just assumed that "yeah what ever he did it". And the only one in the room the entire time for months that knew what really went on,, was the only one in the entire room that got reprimanded if he spoke, and all those rights we hear abot, and protections we have to prevent bad things from happening… as far as im concerned they don't exits. If actions like the defendnants continue or are directed at you.

Everything was reliant on those officers twisted testimony, the da not doing her job, and a corrupt jail full of amped up people who literally get brainwashed to ibe be convincingly illusive at waisting time. And those individual agents failed my justice because they were ill trained and not supervised. And everyone just signs off the next person in so before you can even get someone to look at the beginning you are so far along most people would just agreed just to get let free.

Ithen the government protects them with lawyers against a pro se plaintiff… and im not going to go away. The defendants as representations of the government. Have taken everything in my current physical world and make me like terrible to those ithat count on me.

I pray to the court make me whole again.

Respectfully submitted by Plaintiff Pro Se
DATED This 25th day of April 2023

/s/ tyleralofall.
Tyler A. Lofall